Authority for Personal Data
P.O. Box 93374, 2509 AJ The Hague
Hoge Nieuwstraat 8, 2514 EL The Hague
T 070 8888 500 - F 070 8888 501
autoriteitpersoonsgegevens.nl

The Minister of Finance
P.O. Box 20201
2500 EE The Hague
Date
April 4, 2024
Our reference
z2023-02100
Your letter of
June 27, 2023
Contact person
Your reference
2023-0000148990
Subject
Legislative assessment draft for the Bill on credit registration
Dear Mr. Van Weyenberg,

In a letter dated June 27, 2023, the Authority for Personal Data (AP) was consulted pursuant to the provisions of Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft Rules concerning the management of a credit registration system (hereinafter: the draft).

The AP has objections because the provisions concerning Articles 1, 5, 6, 8, and 9 of the draft do not pass the assessment against components 1, 3, 4, 5, (a), (b), and (c) of the aforementioned framework. If adopted unchanged, these will have to be set aside due to conflict with higher law.

Main points

- The processing by the administrator of the credit registration system is based on Article 6, first paragraph, under c, of the GDPR (legal obligation). However, the role assigned to the administrator in the draft cannot be qualified as merely executing concrete and specific legal obligations. The nature and text of the bill indicate that these processes are based on Article 6, first paragraph, under e, of the GDPR (legal task/authority). Borrowers therefore have the right to object under the GDPR, so the more limited right to deletion (only in cases of 'disproportionate unfairness') can be removed from the draft itself via the credit provider.
- Credit data remains registered in the system for three years after the termination of the credit agreement, even if there was no payment arrears. The necessity of this in light of the objectives of the bill has not been demonstrated and is also not plausible, as the absence of registration also indicates that there were no payment arrears.
- Even in cases of payment arrears, a retention period of three years after recovery without further limitation to sufficiently serious cases is not proportional.
- The lower limit for mandatory provision to the system largely determines the scope of the proposal. From the perspective of democratic legitimacy, this limit should therefore be established at the legislative level.
- The draft states that by means of a general administrative regulation (AMvB), other agreements than credit agreements can also be included in the mandatory credit registration system. This delegation must be more specifically limited so that only what is necessary for the objectives of the law can fall under it.
- The draft states that providers of agreements to be determined by AMvB can voluntarily participate in the system. This voluntariness does not align well with the necessity argued for designating those

agreements and also not with the legal obligation to provide credit data regarding those agreements to the administrator. Participation must also be made mandatory for these providers.
- The draft enables connected providers of agreements to be determined by AMvB to consult the system. This is not an obligation, as is the case for providers of Wft credits. However, a different processing basis than a legal obligation does not fit. The legislator must explicitly regulate when these providers must consult the system and ensure that they can only do so regarding the agreements designated by AMvB.
- The draft states that the administrator can choose which specific codes credit providers can register in the system. This is remarkable, as these codes are often of great importance to the parties involved, there is much uncertainty regarding these specific codes, and there is also much litigation about them. In the opinion of the AP, these specific codes must therefore be included in a statutory provision.

Scope of the draft

Providers of credit1 are currently required by law to participate in a credit registration system and to obtain information to prevent over-indebtedness.2 In practice, there is one credit registration system in the Netherlands, the Central Credit Information System (CKI) of the Foundation Bureau Credit Registration (BKR).3 There are 11 million people registered with BKR in the Netherlands.4

1 Defined in Article 1:1 of the Financial Supervision Act (Wft) as making a sum of money available (part a, also known as money credit) or, in short, making available the enjoyment of a movable property, financial instrument, or investment object (part b, also known as goods credit), whereby the consumer is obliged to make one or more payments.
2 Article 4:32, first paragraph, and Article 4:34, first paragraph, Wft.
3 Explanatory Memorandum p. 1.
4 About Foundation BKR | BKR (www.bkr.nl).

If an individual takes out a loan of more than €250 that lasts longer than one month, the credit provider reports this to BKR.5 It is also reported whether someone has a payment arrears, has caught up on this, or if there are other particulars.6 In addition to name, date of birth, date of death, address, and place of residence, the type of credit, the amount, the agreed start and end date, the actual end date, and any particulars during the term are also provided.7 When an individual takes out a new loan, the credit provider checks their ongoing loans and credit history with BKR to assess whether credit provision is responsible. Credit providers are required to establish criteria that underlie this assessment.8

On November 14, 2019, the AP independently assessed the protection of personal data in the context of credit registration.9 The AP concluded that legislation needed to be established in which:
- the general interest of preventing over-indebtedness is explicitly weighed against the fundamental right to the protection of personal data of the individuals concerned;
- credit registration is clearly delineated from commercial activities by making it a legal task or obligation of (a) manager(s) designated by or under the law;
- clear safeguards for the individuals concerned and proper task execution are provided.

The present draft meets important points of the earlier legislative assessment. The draft introduces the following changes:

Designation of legal entity
Firstly, it designates one legal entity tasked with managing the credit registration system10 for certain purposes.11 Limitations may be placed on that designation and

5 Types of registrations | BKR (www.bkr.nl) These include the following credits: telephone credit,

installment purchase, mortgage, debt assistance, business credit, personal loan, revolving credit, credit card, overdraft, private car lease, or restructuring credit. Business loans of more than €1000 for which someone is personally liable are also reported.
6 Which credits are registered with the BKR Foundation? | BKR (www.bkr.nl).
7 What data does the BKR Foundation have about me? | BKR (www.bkr.nl). The processing of the date of death is evident from Article 10, fourth paragraph, General Regulation CKI. Article 13 of the General Regulation CKI of BKR mentions the following five particularity codes: (1) a repayment arrangement has been made, (2) the credit provider has claimed the remainder or the entire claim, (3) the credit provider has written off an amount of €250 or more, (4) the consumer is found to be unreachable, and (5) the credit provider and consumer have agreed on a written preventive payment arrangement of at least four months for a mortgage credit agreement.
8 Article 115, first paragraph, Decree on Conduct Supervision of Financial Enterprises Wft (BGfo).
9 Legislative assessment AP of November 14, 2019, 'positioning BKR' (z2019-19579).
10 Article 2 of the draft. Management is understood under Article 4 of the draft as "the recording, organizing, maintaining, securing, and making available of credit data, including personal data as far as necessary for the execution of the management of the system." In practice, BKR will be designated to fulfill this task, thus the CKI remains the credit registration system, MvT p. 1.
11 Article 1 of the draft: (a) providing insight into the financial position of natural persons to prevent over-indebtedness and for the assessment of the creditworthiness of these persons, (b) making developments regarding credit provision visible at an aggregated level, (c) providing insight into the credit data for purposes established by or under the law.

regulations shall be attached.12 This designation may also be revoked if the legal entity is deemed by the minister to no longer be fulfilling its duties properly. The administrator shall provide the minister with information regarding the execution of its duties.13 Amendments to the articles of association of the administrator require prior approval from the minister.14

Inclusion of credit agreements and credit data

Affiliated parties are required to report credit data, and any changes thereto, to the administrator.15 This pertains to data regarding credit agreements and other agreements to be determined by general administrative regulation (AMvB) through which natural persons incur a financial obligation.16 In addition to the data currently being processed, other data may also be designated by AMvB as necessary.17 Regarding which particulars may be recorded, it is evident from the explanatory memorandum that this can be elaborated by the administrator itself, and can be aligned with current practice.18

Retention period and deletion request

The retention period for data held by the administrator is three years after the termination of the agreement. Payment arrears remain registered for three years after the resolution of those arrears. Upon the expiration of these retention periods, the administrator shall proceed directly to deletion.19 A natural person may also request the affiliated party to "delete their credit registration, insofar as processing thereof, considering the interest that this regulation aims to protect, would lead to a significant unfairness."20

Provision to third parties

Affiliated credit providers, both based in the Netherlands and in other member states, may submit a request to the administrator for data about natural persons to be provided to them to prevent over-indebtedness and to assess the creditworthiness of those persons.21 Other persons or entities designated by or under the law to gain insight may also request this information.

12 Article 3, second and third paragraphs, of the draft. Revocation occurs simultaneously with the provision by the minister in the management task, for which the minister may set further rules.
13 Article 11 of the draft: the administrator is obliged to provide information upon request regarding the execution of its duties and the fulfillment of any regulations attached to the designation, to report annually on the fulfillment of its duties and execution of its activities, and to provide an annual financial statement, management report, and auditor's statement.
14 Article 3, fifth paragraph of the draft.
15 Article 6 of the draft; Affiliated parties are parties that participate in the credit registration system based on a legal obligation or voluntarily (Article 1). Parties may only participate voluntarily if they offer agreements designated under Article 5, second paragraph of the draft, as indicated in Article 1 and inquiries with the ministry.
16 For 'credit' see footnote 1 and for other agreements see Article 5, first and second paragraphs of the draft. Further rules may be established regarding these agreements by or under AMvB (Article 5, sixth paragraph). AMvB may also designate types of agreements that may only be included if there is a payment arrears (Article 6, second paragraph of the draft).
17 Article 5, fifth paragraph of the draft.
18 Explanatory memorandum p. 16. See also footnote 8.
19 Article 7 of the draft.
20 Article 8 of the draft. The affiliated party must inform the natural person of this possibility.
21 Article 3, sixth paragraph and Article 9, first paragraph of the draft.

can submit such a request for the purposes set out in those rules.22 In addition, the administrator is required to provide aggregated credit data to the Ministers of Finance, SZW, AFM, and to others designated by an AMvB.23

Legislative Review

1. Legal basis for processing and right to object

The processing by the administrator is, according to the explanatory memorandum, based on the basis of ‘legal obligation’.24 This legal basis primarily concerns situations in which private or public parties are required to provide specific data to another party in the public interest.25 The basis of ‘legal obligation’ is interpreted restrictively: the legal obligation itself must be sufficiently clear and precise regarding the processing of personal data.26 The principle is that the party on whom the obligation rests “must not have an inappropriate margin of discretion regarding how it complies with the legal obligation.”27 The legal obligations for credit providers in Article 6, paragraph 1, of the draft and in Article 114 BGfo to provide credit data, update it, and consult the system are examples of such a ‘legal obligation’. However, this does not apply to the processing necessary for carrying out the legal task that follows from the designation as administrator. This legal designation as the sole administrator does not come out of nowhere. BKR was established in 1965 with the aim of providing banks and financial service providers insight into the number of credits a person has, to prevent individuals from falling into debt.28 The CKI of BKR has since been the only system of mandatory credit registration in the Netherlands. Given the design of the legislative proposal - the exclusive assignment of this, now legal, task to one party in the interest of the public - the processing by BKR must, in the opinion of the AP, primarily be understood as processing based on the basis of ‘legal task’.29 That this legal task has also (rightly) been further legally defined and that the legislator can also impose specific obligations on BKR that qualify as a c-ground does not detract from this.

The AP also notes that the ‘General Regulation CKI’ of BKR currently in effect contains many additional rules that are (still) not included in the draft. It is rightly intended to lay down important parts of BKR's policy in legal provisions from now on. However, even then, it will not

22 Article 9, paragraph 4 of the draft.
23 Article 9, paragraphs 2 and 3, of the draft.
24 Article 6, paragraph 1, under c, of the GDPR.
25 See examples on p. 23 of WP 29, Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC.
26 WP 29, Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC, p. 24. The wording under the directive (Article 7, introductory part, and under c) is materially equivalent to Article 6, paragraph 1, introductory part, and under c, of the GDPR.
27 WP 29, Opinion 06/2014 on the concept of "legitimate interest of the data controller" in Article 7 of Directive 95/46/EC, p. 24.
28 About Stichting BKR | BKR (www.bkr.nl).
29 Article 6, paragraph 1, under e, of the GDPR.

any relevant discretion regarding which processing activities are necessary for the proper execution of tasks by BKR is excluded, as if it were only a matter of providing a fully legally mandated ICT service. Proper execution of the legal management task - the primary task of BKR - is expected to require the necessary considerations regarding the necessity of processing activities that may be of great importance to credit providers and consumers. The discretion needed for this is difficult to reconcile with the limited discretion characteristic of the basis of 'legal obligation.' The broader policy freedom that the basis of 'legal task' generally offers does not alter the fact that the main elements must still be included in legislation with due regard to Article 6, paragraph 3, of the GDPR, so that the legislation is overall 'clear and precise and its application is predictable for those to whom it applies.'30

The choice of the correct legal basis is not only of systematic importance; it also has significant consequences for the rights of the data subject. Relying on the basis of 'legal obligation' also means that data subjects cannot object to (further) registration of their data. This follows from Article 17, paragraph 3, under b, and Article 21 of the GDPR. This consequence is logical in itself; the basis implies that a data controller has no choice but to comply with the obligation and can only make limited considerations, so that an objection cannot lead to a meaningful consideration.

From the explanatory memorandum, it follows that the loss of the right to data erasure and objection is compensated by placing the task of assessing deletion requests on credit providers rather than BKR.31 However, they are indeed legally obliged to participate in the system, to provide and update data on the basis of the c-basis 'legal obligation,' and to consult the system. That task, on the other hand, fits the manager of the system. The legislator has tasked them with managing the system, i.e., "recording, organizing, maintaining, securing, and making credit data available." The right to data erasure obviously does not exist if legal provisions - such as the provisions that will be established based on this concept - oppose it, even if the manager processes based on the basis of 'legal task.'32

Setting the above aside, the AP notes that the text of Article 8 of the concept is also not without objections. The explanatory memorandum suggests that the assessment of a deletion request is aligned with the framework under which the assessment currently takes place.33 However, it seems that the deletion of credit data is made more difficult. The concept states that a request for deletion can be submitted to the affiliated party and takes - using terminology commonly found in hardship clauses - as a criterion for deletion that there must be "an unfairness of a predominant nature."34 Under Articles 17 and 21 of the GDPR, however, it applies that the data controller must erase personal data if the data subject objects to

30 Recital 41 of the GDPR.

31 Article 8 of the concept; Explanatory Memorandum p. 7.
32 Article 17, paragraph 3, under b, of the GDPR.
33 Explanatory Memorandum p. 17.
34 Article 8, paragraph 1, of the concept. See also Guideline 5.25 of the Guidelines for Legislation (hardship clause).

the processing and there are no prevailing “compelling legitimate grounds for the processing.” Instead of the GDPR's principle of ‘comply unless’, the concept therefore aims for ‘do not comply unless’.

The AP concludes that the chosen processing basis and the associated deletion request do not pass the assessment against points 1, 2, 5, and (a) of the framework in the annex, so the explanatory memorandum must be amended and Article 8 of the concept must be removed.

2. Retention Period

The retention period for credit data in the system is three years after the termination of the credit agreement, and payment arrears remain registered for three years after the recovery of those arrears.35 The standard three-year retention of all credit data without further stipulation is not considered proportional by the AP. Credit data may only be retained after the expiration of the term of a credit agreement if that is necessary. In the opinion of the AP, this can only be the case if payment arrears occurred relatively frequently during the term of an agreement and/or if it involved relatively large amounts.

The AP concludes that Article 7 of the concept does not pass the assessment against point 3 and (c) of the framework in the annex, so credit data may only be retained after the termination of the credit agreement if payment arrears occurred during the term to an extent that justifies longer retention.

3. Minimum Threshold for Provision

Credit providers are currently required to participate in a credit registration system and to consult the system before entering into a credit agreement for more than €250 (hereinafter: consultation threshold).36 However, the law is currently silent on when credit providers must provide credit data to the system (hereinafter: provision threshold). The policy of BKR is that credits of more than €250 that last longer than one month must be provided.37 This corresponds with the consultation threshold in Article 114 BGfo.

The concept states that “a connected party shall provide credit data, and changes thereof, to the administrator of the credit registration system for inclusion in that system after the conclusion of the agreement.” The explanatory memorandum indicates that the legislator intends to align with current practice by regulating in delegated legislation that only credits of more than €250 that last longer than one month will be included in the register.38 For this, the general possibility of Article 5, sixth paragraph,

35 Article 7, first, second, and third paragraphs of the concept.
36 Article 114 BGfo.
37 Which credits are registered with Stichting BKR? | BKR (www.bkr.nl) and Article 15, first paragraph of the General Regulations CKI.
38 MvT p. 16.

to be used whereby “further rules [can] be established regarding the agreements that […] are included in the system.”

The main elements of a regulation, including the scope, must be included in the law.39
The credit registration system concerns a register in which sensitive data of potentially everyone can be included. The provision limit largely determines the scope of the system. The AP therefore considers it inappropriate to leave the question of whether there will indeed be a statutory provision limit, and if so, how high it will be, to the government.

The AP concludes that the absence of a provision limit in the draft itself does not pass the assessment against points 3, 4, (b) and (c) of the framework in the annex, so that a provision limit must be included in Article 6 of the draft for the credit amount and the term of (credit) agreements.

Furthermore, it is not clear from the explanatory memorandum why it would be appropriate to align with the provision limit currently used by BKR. In the opinion of the AP, alignment with the consultation limit stated in Article 114 BGfo is not self-evident. The provision limit determines which data must be included in the system, while the consultation limit determines when a credit provider must consult the system. The consequences of exceeding the provision limit are therefore greater than those of the consultation limit. A separate consideration must therefore be made for the provision limit between the interest in preventing overcrediting and the fundamental right to the protection of personal data. The outcome of that consideration will likely differ from the assessments made regarding Article 114 BGfo.

The AP concludes that the explanation regarding the height of the provision limit does not sufficiently demonstrate that the draft passes the assessment against points 3, 4, (b) and (c) of the framework in the annex, so it must be better motivated why it is proportional to align with current practice.

4. Agreements to be determined by general administrative order

Affiliated parties are not only required to provide data about credit agreements to the administrator but also about agreements to be determined by general administrative order “whereby natural persons enter into a financial obligation” (hereinafter: designated agreements).40 According to the legislator, that information can provide valuable insight into the existing financial obligations of credit applicants and can be useful in assessing whether it is responsible to grant new credit.41 The legislator intends to designate at least agreements that are very similar to credit but are not credit in the sense of the Wft.42

39 Guideline 2.19 Guidelines for legislation.
40 Article 5, second paragraph of the draft.
41 Responses from the ministry to questions from the AP.
42 Explanatory memorandum p. 15 and responses from the ministry to questions from the AP: for example, lease agreements such as operational car leasing, agreements with natural persons in the exercise of a profession or business for which they are personally responsible for repayment, such as self-employed persons, or new types that may arise in the future, such as buy now pay later products.

The wording of Article 5, second paragraph, of the draft is, in the opinion of the AP, too broad. The provision potentially encompasses any agreement through which natural persons incur a financial obligation, regardless of the conditions (such as the possibility of terminating the agreement early) and regardless of the extent and duration for which the obligation is relevant to the financial position of the individual concerned. In theory, this wording also allows for the registration of service agreements such as subscriptions to streaming services or meal packages.

The AP concludes that the delegation basis in Article 5, second paragraph of the draft does not withstand scrutiny against point 4 and (b) of the framework in the annex, and therefore the delegation basis must be limited.

5. Voluntary participation of providers of designated agreements

Affiliated parties are parties that participate in the system either based on a legal obligation or voluntarily by providing credit data to the system and consulting credit data.43 For providers of designated agreements, there is (currently) no legal obligation to participate in the system. They may participate voluntarily. Once affiliated, providers of designated agreements are legally required to provide credit data to the administrator of the system.44

The AP has requested clarification from the ministry regarding the choice to allow voluntary participation. According to the ministry, imposing an obligation is not appropriate because the issue of regulating types of agreements requires broader policy considerations that cannot be made in the draft but are currently being made in the implementation of the revised Consumer Credit Directive.45 The AP can understand that the choice of which types of agreements should be included in the system can only be made at a later stage. However, this is separate from the question of whether providers of once designated agreements should be affiliated voluntarily or mandatorily.

If it is deemed necessary for certain types of agreements to be mandatorily included in the system, then, in the opinion of the AP, providers of those agreements should also be required to participate in the system. Another structure does not align with the basis of 'legal obligation' and the requirement that there must be 'necessity'. Either it is necessary to designate those agreements, and providers must then also be mandatorily affiliated and provide credit data regarding those agreements to the administrator, or that necessity does not exist, and then those agreements should not be designated at all.

43 Article 1 of the draft.
44 Article 6 of the draft.
45 Directive (EU) 2023/2225 of the European Parliament and of the Council of October 18, 2023, on credit agreements for consumers and repealing Directive 2008/48/EC.

The AP concludes that the possibility of voluntary participation in the assessment system regarding points 1, 4, and (a) of the framework in the annex does not hold, meaning that providers of designated agreements must participate in the system mandatorily, and the option for voluntary participation must be excluded.

6. Consultation by providers of designated agreements

Providers of designated agreements can consult the system based on Article 9, first paragraph of the draft. This is formulated as the possibility to make a request to the administrator, who must then provide the data to the requester.46 The consultation of the system based on Article 9, first paragraph, of the draft is therefore not based on the legal obligation ground as is the case for providers of Wft loans under Article 114 BGfo. However, no other basis for these providers to consult the system is conceivable. The grounds in Article 6, first paragraph, parts a, b, d, and e of the GDPR are not conceivable at all. The f-ground, or necessity for the protection of a legitimate interest, is also deemed unsuitable by the AP. It must then concern the interest of the data controller or a third party. The consultation of the system by the provider, on the other hand, occurs precisely in the interest of the data subject themselves - the consumer - essentially to protect them from themselves. Moreover, the use of the f-ground does not align well with the aim of the draft to provide more legal bases and legal safeguards for current practice.

Additionally, the text of the draft law allows providers to consult the system to assess the creditworthiness of consumers for non-designated agreements they offer. After all, that designation only concerns which agreements can be included in the system and not when the system can be consulted.

The AP concludes that Article 9, first paragraph, of the draft regarding providers of designated agreements does not hold up to assessment against points 3, 4, 5, and (c) of the framework in the annex, meaning that providers of designated agreements must be required to consult the system before entering into (only those) designated agreements. It is necessary that at least the consultation threshold in Article 114 BGfo, which applies to providers of Wft loans, is adhered to.

7. Special codes

One type of data that can be recorded in the credit registration system regarding an agreement is the "particulars that occur during the term of the agreement."47 As mentioned, the administrator of the system can choose which particulars can be registered, and the assumption seems to be that it will align with the current practice of BKR.48 This choice is remarkable, as there is considerable uncertainty regarding those particular codes, and much litigation occurs. One example is the particular code 'the consumer is found to be unreachable.' It is insufficiently clear why it is necessary for credit providers to register that data in the system, and what exactly qualifies as 'being found unreachable.' By leaving it to the administrator to decide which particulars may be registered, the draft, in the opinion of the AP, is insufficiently predictable. On the other hand, this broad policy freedom also makes the administrator vulnerable in light of the possibility to object.

The AP concludes that Article 5, fourth paragraph, part f, of the draft does not hold up to assessment against point 4 and (b) of the framework in the annex, meaning that a legal regulation must determine which particulars can be registered and the necessity thereof must be substantiated in the explanation.

Workload AP

It is likely that the draft will compel the AP to exert extra effort. This effort has not yet been factored into the financing of the AP. This must be addressed in consultation with the Minister for Legal Protection - as the responsible party for the budget from which the AP is financed - prior to the entry into force. For this reason, a copy of this legislative assessment is sent to the Minister for Legal Protection.

Publication

This legislative assessment will be published on the AP's website within two weeks.

Yours sincerely,
Dutch Data Protection Authority,

Aleid Wolfsen
Chairman
Date
April 4, 2024
Our reference
z2023-02100

- Annex

--*--

Assessment Framework AP

The AP assesses whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met,

by:
1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a balancing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and
6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the compliance of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), as well as with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:
(a) processing must be lawful, fair, and transparent with respect to the data subject;
(b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and
(c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

--*--